

Court No. - 3

Case :- WRIT - C No. - 35835 of 2024

Petitioner :- Ashok

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Amarjeet

Choudhary, Sangam Singh

Counsel for Respondent :- C.S.C., Mukesh Kumar
Singh

Hon'ble Anjani Kumar Mishra, J.

Hon'ble Jayant Banerji, J.

Learned counsel appearing for respondent no. 3,
prays for and is granted a week's time to obtain
instruction in the matter.

Put up as fresh after a week.

Order Date :- 25.11.2024

Vinod.

Court No. - 29

Case :- WRIT - C No. - 35835 of 2024

Petitioner :- Ashok

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Amarjeet Choudhary, Sangam Singh

Counsel for Respondent :- C.S.C., Mukesh Kumar Singh

Hon'ble Vivek Kumar Birla, J.

Hon'ble Dr. Yogendra Kumar Srivastava, J.

1. Heard Sangam Singh, learned counsel for the petitioner and the learned Standing Counsel appearing for the State-respondent and Sri Mukesh Kumar Singh, learned counsel for respondent nos. 2 and 3.
2. The present petition has been filed seeking to quash the impugned recovery citation dated 16.05.2024 issued by the respondent no.3 in respect of electricity connection no. 761635024875 and also prayed for a direction to the respondent-authority not to recover the amount of Rs. 3,12,299.00 as mentioned in the recovery citation dated 16.05.2024.
3. Learned counsel appearing for the respondent-Corporation submits that the grievance of the petitioner can be suitably redressed under the Clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005.
4. Learned counsel for the petitioner submits that the petitioner shall avail the aforesaid remedy in accordance with law. However, some protection may be granted to the petitioner till a decision is taken by the respondent-Corporation.
5. Accordingly, the present petition stands disposed of with liberty to the petitioner to file a fresh complaint/representation under Clause 6.5 of the U.P. Electricity Supply Code, 2005 before the respondent no.3-Executive Engineer (Electricity Department), Vidyut Vitaran Khand-III, Bisauli, Budaun within 10 days from today.
6. It is provided that in case such remedy is invoked within a period of 10 days from today, the same shall be decided by the respondent no.3 in accordance with the aforesaid provisions.

7. For a period of four weeks or till disposal of such representation, whichever is earlier, no coercive action shall taken against the petitioner in pursuance of recovery citation dated 16.05.2024.

8. It is made clear that this Court has not considered the claim of the petitioner on merit.

Order Date :- 3.12.2024

Imroz